



CHAPTER xxxix.

An Act for transferring to the University of London the powers and duties of King's College London in relation to instruction of a university standard in subjects comprised within the faculties in the university other than the faculty of theology and for other matters connected therewith. A.D. 1908.
[1st August 1908.]

WHEREAS the council of King's College London with the consent of the members of King's College London have agreed with the University of London that the powers and duties at the passing of this Act vested in and performed by and the departments or branches of the college carried on by King's College London in relation to the provision of and otherwise in relation to instruction of a university standard in subjects comprised within the faculties in the university other than the faculty of theology should be transferred to the university and to execute such lease or sub-lease to the university of the site of the buildings belonging to the corporation of the college situate in the Strand in the county of London and a portion of the said buildings as is in this Act provided to the intent that the departments or branches of the college transferred and the portion of the said buildings leased or sub-leased to the university may be continued under the direct control of the university as an institution and place of teaching and research in which wide academic culture may be secured by the variety of the subjects taught in different faculties (other than the faculty of theology) including preliminary and intermediate (but not advanced) medical studies:

And whereas the estate or interest of the corporation of the college in the lands tenements and hereditaments situate in the

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A.D. 1908. Strand and forming the site of the said buildings and in the said buildings is free from incumbrances :

And whereas the council with the like consent have agreed with the university for the transfer to the university of the management of the instruction at the passing of this Act given in the buildings known as the women's department of King's College situate in the parish of Kensington in the county of London in subjects comprised within the faculties in the university (other than the faculty of theology) and the transfer to the university of the powers and duties of the college in relation to the higher education of women in such subjects as aforesaid and the transfer to the university of the last-mentioned buildings and the site thereof to the intent that the said women's department of King's College may be continued as an institution for the higher education of women as in this Act is provided :

And whereas it is expedient that the recited agreements should be carried into effect and that provision should be made for the transfer to the corporation of the hospital of the school of advanced medical studies connected with the hospital at the passing of this Act carried on by the corporation of the college and for the carrying on of the same by the corporation of the hospital :

And whereas it is expedient that provision should be made for carrying on the work of the school known as King's College School at the passing of this Act carried on in connection with the college :

And whereas it is expedient that the King's College London Act 1882 the King's College London Act 1903 the King's College Hospital Act 1851 and the King's College Hospital Act 1904 respectively should be repealed and amended to the extent and in the manner in this Act provided :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the King's College London (Transfer) Act 1908.

2. In this Act unless the context otherwise requires— A.D. 1908.

The expression "the university" means the University of London; Definitions.

The expression "the senate" means the senate of the university;

The expression "the corporation of the college" means the corporation constituted by Royal Charter dated the twenty-fourth day of August one thousand eight hundred and twenty-nine and continued incorporated by the King's College Act 1882 by the name of King's College London;

The expression "the college" means all the departments or branches of the institution or institutions at the passing of this Act carried on by or under the control of the corporation of the college or the council other than and except the women's department the hospital the medical school King's College School the Strand School and the Civil Service department;

The expression "University of London King's College" means the departments or branches of the college by this Act transferred to the university;

The expression "the theological department of King's College London" means the department or branch of the college which is not by this Act transferred to the university but will remain vested in and under the control of the corporation of the college;

The expression "the council" means the council of King's College London as constituted at the passing of this Act and as the same will be constituted in accordance with this Act;

The expression "the women's department" or "the women's department of King's College" means that department or branch of the institution or institutions at the passing of this Act carried on by the corporation of the college which is at the passing of this Act carried on in the said parish of Kensington in relation to the higher education of women;

The expression "the hospital" means the hospital known as King's College Hospital carried on by the corporation of the hospital;

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The expression "the corporation of the hospital" means the corporation of the president vice-presidents and governors of King's College Hospital incorporated by the King's College Hospital Act 1851;

The expression "the committee of management" means the committee of management of the hospital constituted under the King's College Hospital Act 1851;

The expression "the medical school" means the school of advanced medical studies connected with the hospital and at the passing of this Act carried on by the corporation of the college;

The expression "King's College School" means the school at the passing of this Act carried on under that name by the corporation of the college;

The expression "the corporation of King's College School" means the corporation constituted by this Act for carrying on King's College School;

The expression "the Strand school" means the boys' school known by that name and at the passing of this Act carried on in the college buildings in the Strand under the control of the council;

The expression "the Civil Service department" means the department or institution known by that name and at the passing of this Act carried on in the said buildings under the control of the council;

The expression "appointed day" means the first day of September one thousand nine hundred and nine or such later day as the commissioners may appoint either generally or with reference to any particular provision of this Act and different days may be appointed for different purposes and different provisions of this Act whether contained in the same section or in different sections;

The expression "the commissioners" means the commissioners appointed by or under this Act for the time being holding office.

Transfer
of secular
departments
of King's
College to
University
of London.

3.—(1) Subject to the provisions of this Act as from the appointed day all rights powers (whether exercised with respect to the college or to other bodies) functions duties trust funds and liabilities of or vested in or performed by or imposed upon the corporation of the college or the council on their behalf so

far as the same relate to the provision or management of or otherwise to or are held in trust for or for the purposes of instruction of a university standard in subjects comprised within the faculties in the university other than the faculty of theology shall by virtue of this Act be transferred to vested in and performed and discharged by the university and every department or branch of the college carried on by the corporation of the college or the council on their behalf in relation to instruction of a university standard in any of such subjects shall by virtue of this Act be transferred to and vested in the university. A.D. 1908.

(2) Subject to the provisions of this Act as from the appointed day all rights powers (whether exercised with respect to the college or to other bodies) functions duties trust funds and liabilities of or vested in or performed by or imposed upon the corporation of the college or the council on their behalf so far as the same relate to the provision or management of or otherwise to or are held in trust for or for the purposes of instruction of a university standard in subjects comprised within the faculty of theology in the university or other instruction in theology shall remain vested in and be performed by and imposed upon the corporation of the college or the council (as the case may be) and the department or branch of the college carried on by the corporation of the college or the council on their behalf in relation to instruction of a university standard in such subjects as in this subsection mentioned shall remain vested in the corporation of the college in as full and ample a manner as if this Act had not been passed.

(3) Subject to the provisions of this Act as from the appointed day the constitution and management of University of London King's College and the theological department of King's College London respectively shall be regulated in accordance with the statutes and regulations made for the purpose by the commissioners and in framing those statutes and regulations the commissioners shall give effect to the provisions specified or indicated in the First Schedule to this Act.

4.—(1) On or before the appointed day the corporation of the college shall grant and the university shall accept a lease or leases of all such parts of the lands tenements and hereditaments situate in the Strand and forming the site of the college the Strand school and the Civil Service department as are vested in the corporation of the college in fee simple together with the Parts of King's College to be leased to University of London.

A.D. 1908. — buildings thereon and the appurtenances thereof and an under-lease or under-leases of all such parts of the said lands tenements and hereditaments as are held by the corporation of the college for any leasehold interest with the buildings thereon and the appurtenances thereof but except and reserved out of any such lease or leases under-lease or under-leases as hereinafter is provided.

(2) The term granted by such lease or leases under-lease or under-leases shall be in the case of a lease or leases the term of 999 years commencing from the appointed day and in the case of an under-lease or under-leases the residue remaining unexpired at the appointed day of the term or terms for which the premises comprised therein respectively are held by the corporation of the college under the lease or leases of the same premises to them less the last three days thereof respectively.

(3) The rent to be reserved to the corporation of the college on any such lease or under-lease as aforesaid shall be a peppercorn or other nominal rent.

(4) Subject as hereinafter is provided there shall be excepted and reserved to the corporation of the college out of any such leases or under-leases as aforesaid—

(A) The chapel of the college as it exists at the passing of this Act:

(B) The room at the passing of this Act commonly known as the Theological Room:

(C) The rooms on the first floor of the said buildings at the passing of this Act distinguished or commonly known by the respective numbers 26 27 28 29 30 34 and 36:

(D) The rooms at the passing of this Act occupied by the architectural department of the college.

(5) Covenants or provisions shall be inserted in such leases or under-leases to the effect specified or indicated as follows (that is to say):—

(i) The university shall permit the council to have for the purposes of the Strand school and the Civil Service department respectively the use of the rooms in the said buildings at the passing of this Act occupied by the Strand school and also the use in accordance with the conditions and to the extent of the user

existing at the passing of this Act of the rooms in the said buildings at the passing of this Act used for the purposes of the Civil Service department during any period not exceeding the period of two years from the appointed day during which the corporation of the college may desire to retain the same and during such further period (if any) as may be agreed upon between the university and the corporation of the college : A.D. 1908.

- (ii) So long as the said rooms occupied by the Strand school remain so occupied the corporation of the college shall not be entitled to the exclusive use of any other part of the said buildings except the rooms at the passing of this Act occupied by the faculty of theology and the said room on the first floor of the said buildings at the passing of this Act distinguished or commonly known by the number 30 :
- (iii) The senate and the council may agree to postpone for such period as they may think proper the occupation by the theological department of King's College London of the rooms in the said buildings at the passing of this Act occupied by the architectural department of the college :
- (iv) Subject to and in accordance with such arrangements as shall from time to time be agreed upon between the senate and the council an adequate portion of the library of the college shall from time to time be assigned for the accommodation of the theological books belonging to the theological department of King's College London and the students whether of the theological department of King's College London or of University of London King's College shall have access to all books whether theological or secular contained in the said library :
- (v) Subject to and in accordance with such arrangements as shall be from time to time agreed upon between the senate and the council the staff and students respectively of the theological department of King's College London shall be entitled to the use jointly with the staff and students respectively of the University of London King's College of the large

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theatre the great hall and all such rooms in the said buildings as are from time to time used as common rooms and refreshment rooms for the general use of the staff and students respectively of the college.

(6) All other usual or proper covenants or provisions shall be inserted in such lease or leases under-lease or under-leases.

(7) In case any question shall arise between the corporation of the college and the university as to the insertion in any such lease or under-lease or the omission therefrom of any covenant or provision or otherwise as to the carrying into effect of any of the provisions of this section or as to the form of any such lease or under-lease such question shall be determined or such lease or under-lease shall be settled by the commissioners who shall have power to make any orders which they may think proper in relation to any such question as aforesaid and any order of the commissioners so made shall have effect as if enacted in this Act.

Council to
pay ex-
penses of
general up-
keep of
theological
department.

5. The council shall bear and pay all expenditure incurred in relation to the rooms in the said buildings exclusively occupied for the time being by or for the purposes of the theological department of King's College London in respect of fuel lighting cleaning painting and general upkeep and internal repairs and in the event of any arrangement being made between the council and the university for fuel being supplied or lighting cleaning painting upkeep or repairs being undertaken in respect of any of such rooms as aforesaid by the establishment of University of London King's College separate accounts shall be kept of all expenditure in respect of fuel lighting cleaning painting or upkeep so provided or undertaken.

Contribu-
tions by
council to
salary of
principal and
expenses of
administra-
tion.

6. The council shall in every year pay to the university—

(i) By way of a contribution towards the salary of the principal of the college the sum of two hundred pounds :

(ii) By way of a contribution towards the expenses of the external repairs of the said buildings and the administration of University of London King's College the sum of one hundred and fifty pounds.

In what pro-
portions
rates and
taxes shall

7. Unless and until the portions of the said buildings which shall be leased or under-leased to the University pursuant to this Act and the portions of the said buildings excepted or reserved

out of such letting or underletting shall be separately entered in the valuation list for the time being in force under the Valuation (Metropolis) Act 1869 and separately assessed as hereditaments all rates taxes duties charges assessments and outgoings whatsoever whether Parliamentary parochial local or of any other description which on the appointed day or at any time thereafter shall be assessed charged or imposed upon or payable in respect of the said buildings as one hereditament shall be borne and paid by the university and the corporation of the college in such shares and proportions as in default of agreement shall be determined by a surveyor to be appointed on the request of either the university or the corporation of the college by the President of the Surveyors' Institution.

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be borne by college and university.

8. The council shall pay to the university in respect of the rooms in the said buildings at the passing of this Act occupied for the purposes of the Strand school and from time to time remaining so occupied so long as the same remain so occupied such annual sum as the commissioners shall by order determine and in respect of the rooms in the said buildings at the passing of this Act occupied for the purposes of the Civil Service department and from time to time remaining so occupied so long as the same remain so occupied such annual sum as the commissioners shall by order determine but so that the aggregate of the two annual sums so determined shall be the annual sum of fifteen hundred pounds each of such two annual sums to be reducible in the events and manner hereinafter mentioned and to be paid by equal quarterly payments on the usual quarter days and so in proportion for any less time than a quarter of a year and in consideration of each of the said annual sums respectively the university shall defray all reasonable and proper expenses incurred by the council during the period during which such annual sums shall respectively continue payable in relation to the rooms in respect whereof the same shall be payable in respect of the following matters (that is to say) Salaries of attendants (including attendants for evening Civil Service classes and charwomen) lighting and heating including gas and electric light fuel repairs rates and taxes and office establishment expenses Provided that if at any time or times the council shall cease to occupy for the purposes of the Strand school or Civil Service department any of the said rooms at the passing of this Act occupied for the purposes of the same respectively the annual sum determined by the commissioners to be payable in respect

Annual payment by council to university while Strand school and Civil Service department remain in college buildings.

A.D. 1908. of the rooms occupied for the purposes of the said school or department as the case may be shall be thenceforth reduced by such amount as failing agreement the commissioners shall by order determine.

Application of income received by council in respect of Strand school and Civil Service department.

9. All moneys in the nature of income or revenue received by the council from or in respect of or in connection with the Strand school or the Civil Service department respectively shall be applied first in or towards payment of the annual sum determined by the commissioners to be payable in respect of the rooms in the said buildings occupied for the purposes of the said school or department as the case may be secondly in or towards payment of any expenses of the said school or department as the case may be other than those to be defrayed by the university as in this Act is provided and the residue if any of such moneys shall be accumulated by the council by way of compound interest by investing the same and the resulting income thereof upon any securities for the time being authorised by law for the investment of trust funds and such investments shall when the Strand school or the Civil Service department as the case may be are removed from the said buildings be sold and the proceeds of such sale applied by the council in the first instance in or towards defraying the expenses of such removal and the balance (if any) of such proceeds after satisfying all such expenses shall be applied by the council for the general purposes of the Strand school or the Civil Service department as the case may be as the council in their absolute discretion shall think proper.

As to provision elsewhere of accommodation for Strand school and Civil Service department.

10. In case the corporation of the college and the council shall determine to continue to carry on the Strand school and the Civil Service department or either of them after the appointed day the corporation of the college and the council acting on their behalf shall use their best endeavours to provide the necessary accommodation for the Strand school and the Civil Service department or such one of them as they may continue to carry on after the appointed day elsewhere than in the said buildings as soon as is reasonably practicable after the appointed day.

Re-allocation of rooms in college when Strand school and Civil Service department removed.

11. It shall be lawful for the senate and the council to enter into and carry into effect agreements for allocating the several rooms in the said buildings otherwise than as provided by the provisions of this Act or any lease or under-lease made under the provisions thereof in such manner as may be mutually agreed between them.

12. If at any time after the appointed day the college shall be removed from its present site in the Strand the university shall use its best endeavours to secure such a site for University of London King's College as will admit of adequate and convenient accommodation being provided for the theological department of King's College either on such site or immediately adjacent thereto and the university shall before entering into any binding contract for the acquisition of any new site for University of London King's College send by post to the council notice in writing of their intention to acquire such site and shall take into their consideration any representations which may be transmitted to them in writing by the council in relation thereto before the expiration of one month after such notice as aforesaid has been sent.

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Theological department to be if possible accommodated on new site of college in event of removal.

13. On the appointed day the corporation of the college shall transfer or deliver to the university all the fixtures furniture books instruments apparatus and other chattels and effects owned by them and being part of the equipment of the college for or in connection with the giving of instruction of a university standard and the promoting of research in any of the faculties of the university other than the faculty of theology:

College to transfer furniture and equipment.

Provided that with respect to any fixtures furniture books instruments apparatus or other chattels or effects owned by the corporation of the college and employed as equipment for or in connection with as well the medical school as preliminary or intermediate medical studies the commissioners shall in default of agreement between the university and the corporation of the hospital by order determine which of the same shall be transferred or delivered to the university and which to the corporation of the hospital and the corporation of the college shall transfer or deliver the same in accordance with such agreement or order as aforesaid.

14. Nothing in this Act or in any statute made by the commissioners contained and no lease or sub-lease act or thing granted made done effected or suffered by under or by virtue of this Act shall operate or have effect so as to—

Act not to bring into operation Crown's right of re-entry.

- (1) Cause the right of re-entry by a certain grant from the Crown (comprising part of the present site of the college buildings in the Strand) dated the eleventh day of June one thousand eight hundred and twenty-nine and enrolled in the Office of the Commissioners

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of Woods Forests and Land Revenues on the seventh day of August one thousand eight hundred and twenty-nine reserved in favour of the Crown in the several events in such grant mentioned in that behalf to arise or become operative or effective ; or

- (2) Cause a certain indenture of lease (comprising other part of the present site of the college buildings in the Strand) dated the twenty-eighth day of October one thousand eight hundred and seventy-five and made between the Commissioners of Her Majesty's Works and Public Buildings of the one part and the governors and proprietors of King's College London of the other part to become void or of no effect or the cesser or determination of the term by such indenture created under the provisions in that behalf therein contained or otherwise :

Provided always that nothing in this Act or in any statute made by the commissioners contained shall authorise or justify or be construed or deemed to authorise or justify the use by the university or the corporation of the college or any other corporation or person of the buildings now standing or of any buildings hereafter to be erected upon the respective parts of the present site of the college buildings in the Strand comprised respectively in the Crown grant and lease respectively mentioned in this section or of any part of any such buildings respectively for any purpose or purposes whatsoever other than purposes of or ancillary to University of London King's College the theological department of King's College London the Strand school or the Civil Service department or in any way prejudice the right of re-entry reserved as in this section mentioned in favour of the Crown or the provisions for the avoidance cesser or determination of the term created by the said lease in this section mentioned in the event of the buildings for the time being standing upon the said parts of the said site or any part of such buildings being at any time hereafter used for any purpose or purposes other than such purposes as aforesaid or not being kept in proper repair and condition Provided further that the said buildings and every part thereof shall for the purposes of this section and the said Crown grant be deemed to be kept in proper repair and condition for the purposes for which the same are designed respectively if the same respectively are kept in proper repair and condition for the purposes for which the same respectively

are for the time being used under or by virtue of this Act or A.D. 1908.
any statute made by the commissioners.

15. No additions or alterations to the buildings mentioned in the last preceding section so far as they affect the exterior shall be carried out unless they shall in the opinion of the Commissioners of His Majesty's Works and Public Buildings not only as regards their situation and their exterior elevation and design but also as regards the materials to be used exteriorly in their construction harmonise with the general architectural character of the buildings of Somerset House and before any such additions or alterations are commenced plans showing the exterior elevation and design of the same with sufficient details of construction shall be submitted to the last-mentioned commissioners for their approval.

For protection of
Somerset
House.

16.—(1) The corporation of the college shall before the appointed day pay off and discharge all mortgages charges or other incumbrances upon the lands tenements and hereditaments forming the site of the women's department and the buildings thereon or any part of such lands tenements hereditaments and buildings and procure the same lands tenements hereditaments and buildings or such part thereof to be reassured to the corporation of the college discharged from all principal moneys and interest secured by and from all claims and demands under every such mortgage charge or incumbrance and the corporation of the college shall immediately before the appointed day cause to be delivered to the university a statutory declaration by the secretary or other proper officer for the time being of the corporation of the college to the effect that the said lands tenements hereditaments and buildings and every part thereof are free from incumbrances.

Transfer of
women's
department
of college to
university.

(2) Subject to the provisions of this Act as from the appointed day the women's department of King's College and all rights and powers (whether exercised with respect to the college or other bodies) duties functions real and personal property (including trust funds) and liabilities of or vested in or held by the corporation of the college or the council on their behalf in relation to or for the purposes of the women's department of King's College including the site of the women's department and the buildings thereon shall by virtue of this Act be transferred to vested in and performed and discharged by the university.

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(3) The university shall forthwith after the appointed day grant to the corporation of the college a lease for the term of nine hundred and ninety-nine years at a peppercorn or other nominal rent of a convenient room in the last-mentioned buildings in which the council may give instruction in theology and religion to such of the students attending the women's department as may desire to receive the same such lease to contain all such covenants and provisions as may be necessary or proper and in the event of disagreement between the corporation of the college and the university as to the form thereof or as to the insertion therein or omission therefrom of any covenant provision or thing to be settled by the commissioners And if and so often as the women's department shall be removed to any other buildings the said lease or any other lease or sub-lease granted under the provisions of this section and for the time being subsisting shall forthwith determine and the university shall grant to the corporation of the college if the site of such buildings shall be vested in the university in fee simple a lease for the like term and if the site of such buildings shall be vested in the university for a leasehold interest only then a sub-lease for the residue remaining unexpired of the term for which the same shall be held by the university less the last three days thereof of a convenient room in such buildings such lease or sub-lease to be at the like rent and for the like purposes as and to contain identical terms and provisions (the necessary alterations being made) with those contained in the lease in this subsection first mentioned.

(4) Subject to the provisions of this Act the constitution and management of the women's department of King's College shall be regulated in accordance with the statutes made for that purpose by the commissioners and in framing those statutes the commissioners shall give effect to the provisions specified or indicated in the Second Schedule to this Act.

Extension of
power of
university to
hold lands in
mortmain.

17. As from the appointed day the annual value of the land which may be held by the university without licence in mortmain shall be fifty thousand pounds in addition to the annual value of such lands buildings hereditaments and possessions as may be from time to time exclusively used and occupied for the immediate purposes of the university.

Corporation
of college of
whom to con-
sist.

18.—(1) As from the appointed day section 3 of the King's College London Act 1882 the marginal note whereof is "College of whom to consist" is hereby repealed and as from the appointed

day the corporation of the college shall continue the same body corporate as theretofore but shall in lieu of consisting of the members specified in that behalf in the said section of the said Act consist of the following members (that is to say):—

A.D. 1908.

- (A) The governors as defined by section 8 of the King's College London Act 1882 the marginal note whereof is "Governors of the college" as amended by this Act;
- (B) Any of the existing members of the corporation of the college who being proprietors of shares in the college originally taken or donors of the first class or donors of the second class as defined in the King's College London Act 1882 and not being otherwise qualified shall within six months after the appointed day signify in writing addressed to the secretary of the college their desire to continue members of the corporation of the college (such members to be styled "original members");
- (C) All persons who on the appointed day shall be fellows of the college;
- (D) All fellows of the college elected after the appointed day by the council;
- (E) All fellows of the college appointed after the appointed day by the senate who shall be appointed by the council to be members of the corporation of the college; and
- (F) Any person who after the appointed day shall become a donor to the funds of the corporation of the college at one and the same time in the case of an associate of King's College of the sum of twenty-five pounds and in the case of any other person of the sum of one hundred pounds.

(2) All words in section 27 of the King's College London Act 1882 the marginal note whereof is "Members divested of personal interest Privileges of donors of first class" as are subsequent to the word "extinguished" where that word occurs for the second time in the said section are hereby repealed as from the appointed day.

19. As from the appointed day section 8 of the King's College London Act 1882 the marginal note whereof is "Governors of the college" shall be construed as if the words

Amendment
of section 8
of King's
College Lon-
don Act

A.D. 1908. "the Bishop of Saint Albans the Bishop of Southwark the
1882 as to " chairman of the house of laymen of the province of Canterbury
governors of " the chairman of the house of laymen of the province of York"
college. had been inserted therein immediately after the words "the
Bishop of London" instead of the words "the Lord Chief
Justice of England the Speaker of the House of Commons the
Secretary of State for the Home Department the Lord Mayor
of London" and as if the word "six" had been inserted
therein immediately after the words "at least" instead of the
word "one half" If on the appointed day there shall be three
clerical life governors then such one of them and if on the
appointed day there shall be four clerical life governors then
such two of them as failing agreement shall be determined by
lot shall by virtue of this Act forthwith go out of office and
the vacancy or vacancies thereby created shall be filled by the
nomination of a lay life governor or lay life governors.

Council of
college Sec-
tion 2 (1) of
King's Col-
lege London
Act 1903 re-
pealed.

20. From and after the appointed day the following
provisions shall have effect (that is to say):—

(1) The council shall consist of—

- (A) The governors of the college;
- (B) The treasurer of the college;
- (C) Eighteen other members of the corporation
of the college to be elected at the general annual
court of members of the college as hereinafter is
provided;
- (D) Two persons not being members of the staff
of the theological department of King's College
London to be elected by the associates of the
college as hereinafter provided;
- (E) The dean of King's College;
- (F) Two members of the staff of the theological
department of King's College London to be elected
by the staff:

(2) At the first general annual court of the members of the
corporation of the college holden after the appointed
day all the then existing members of the council
other than the governors and the treasurer of the
college shall go out of office At the said general
annual court the eighteen members of the council

mentioned in this section shall be elected by the members of the corporation of the college from among such of the members of the council so going out of office as aforesaid as shall have previously signified in writing addressed to the secretary of the college their desire to be members of the new council Provided that in case less than eighteen of the outgoing members of the council shall so signify their desire then and in that case in addition to the outgoing members of the council if any who shall have so signified their desire there shall be elected from among the members of the corporation of the college a sufficient number of persons to make up the said number of eighteen members :

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- (3) At the first subsequent general annual court six of the said eighteen members of the council to be determined failing agreement by lot at the next subsequent general annual court six of the said eighteen members who have not already retired under the present provision to be determined failing agreement by lot and at the next and every subsequent general annual court the six of the said eighteen members who shall have been longest in office since their last election shall go out of office but shall be capable of being re-elected but they shall not be considered out of office until their successors are elected in accordance with the provisions in that behalf contained in section 23 of the King's College London Act 1882 the marginal note whereof is "Election of council and auditors" :
- (4) The council shall make such regulations or byelaws as they may think desirable for regulating the election of the members of the council representing the associates of King's College and the staff of the theological department of King's College London respectively :
- (5) Subsection (1) of section 2 of the King's College London Act 1903 the marginal note whereof is "Council of college Section 12 of Act of 1882 repealed" is repealed as from the appointed day.

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Other
amendments
of King's
College Lon-
don Acts
1882 and
1903.

21. As from the appointed day the following provisions shall have effect:—

- (1) The provisions of section 7 of the King's College London Act 1882 the marginal note whereof is "Visitor of the college" shall not extend or apply to University of London King's College or to the women's department of King's College:
- (2) In section 16 of the King's College London Act 1882 the marginal note whereof is "Powers of Council" the words "the principal and the head master and" and all the words in the section which are subsequent to the words "think fit" are repealed:
- (3) The provisions of section 17 of the King's College London Act 1882 the marginal note whereof is "By-laws and regulations" shall not extend or apply to University of London King's College or the principal of the college or to the women's department of King's College:
- (4) The provisions of sections 3 and 4 of the King's College London Act 1903 the respective marginal notes whereof are "As to audit of accounts of College" and "Annual report" shall not extend or apply to University of London King's College or to the women's department of King's College.

Power for
senate to
make sta-
tutes for
University
of London
King's Col-
lege and
women's de-
partment.

22. After the expiration of the powers of the commissioners the senate shall have power in accordance with and subject to the provisions of the University of London Act 1898 and of the statutes made for the university thereunder and for the time being in force to make statutes and regulations for altering revoking adding to or supplementing any of the statutes or regulations made by the commissioners in so far as the same may relate to University of London King's College or to the women's department of King's College. Provided that no statute or regulation in so far as it gives effect to the provisions contained in the First and Second Schedules to this Act shall be altered or revoked and no new statute or regulation contrary to or varying those provisions shall be made by the senate and any regulation made under this section shall be invalid so far as it is inconsistent with any statute made under this Act and for the time being in force.

23.—(1) As from the appointed day the medical school and all rights and powers (whether exercised with respect to the college or other bodies) duties functions trust funds and liabilities of or vested in or held by the corporation of the college or the council on their behalf in relation to or for the purposes of the medical school shall by virtue of this Act be transferred to vested in and performed and discharged by the corporation of the hospital who shall as from the appointed day and subject to and in accordance with the provisions of this Act relating to the medical school and so far as the funds or income from time to time applicable to the purposes of the medical school permit maintain and develop the medical school as a school of advanced medical studies in connection with the hospital.

A.D. 1908.
 —
 Transfer of
 medical
 school to
 corporation
 of hospital.

(2) On the appointed day the corporation of the college shall transfer or deliver to the corporation of the hospital all the fixtures furniture books instruments apparatus and other chattels and effects owned by them and being part of the equipment employed exclusively for or in connection with the medical school.

(3) In the event of the appointed day being earlier in date than the date in section 17 of the King's College Hospital Act 1904 the marginal note whereof is "Release of King's College London and council from payment of rent" mentioned as the date on which King's College London and the council shall cease to be liable for the payment of the yearly rent or sum in the said section mentioned the appointed day shall for all the purposes of the several provisions of the said section be deemed to be substituted for the said date in the said section mentioned and the said provisions shall operate and have effect accordingly.

24. As from the appointed day the several sections in the third column of the Third Schedule to this Act mentioned of the several Acts of Parliament relating to the hospital in the first column of the same schedule mentioned are repealed and amended to the extent and in the manner in the fourth column of the same schedule specified.

Repeal of
 parts of
 King's Col-
 lege Hospital
 Acts 1851
 and 1904.

25. Subject to the provisions of this Act all powers and duties immediately before the appointed day vested in or imposed upon the council which are capable of being exercised or performed in relation to the hospital or the medical school and with regard to which no express provision is made in this Act and

Certain
 powers and
 duties of
 council to be
 exercised and
 performed by
 committee of

A.D. 1908. which are not inconsistent with any of the provisions in this Act
management in relation to hospital and medical school. contained or with any regulations made under this Act in relation to the hospital or the medical school and for the time being in force may be exercised and shall be performed by the committee of management in relation to the hospital or medical school as the case may be in like manner as if the same powers and duties had by this Act been expressly conferred and imposed upon the committee of management in relation to the hospital or the medical school respectively.

Alteration of constitution of committee of management.

26. As from the appointed day such person or persons not exceeding two in number as the council shall from time to time appoint in that behalf the dean of the medical school by virtue of his office and two members of the active medical staff of the hospital elected and retiring in such manner and at the expiration of such periods as shall be provided in that behalf by any regulations for the government of the medical school for the time being in force and any one person whom the committee of management may in their absolute discretion think fit to elect on the nomination of the senate shall be members of the committee of management in addition to the several persons of whom the same consists under section XVI. of the King's College Hospital Act 1851 the marginal note whereof is "Constitution of committee of management."

As to erection of new King's College Hospital under King's College Hospital Act 1904.

27.—(1) The corporation of the hospital or the committee of management acting on their behalf shall upon the lands purchased acquired taken on lease or in exchange or accepted by them under the powers of the King's College Hospital Act 1904 or some part of such lands erect in accordance with the highest standard of modern requirements as obtaining at the appointed day a substantial and commodious building in all respects well adapted for the purposes of a hospital and medical school with all necessary or suitable outbuildings yards areas approaches and other appendages and conveniences.

(2) Provided always that nothing herein contained shall impose any obligation upon the corporation of the hospital or the committee of management acting on their behalf to expend upon the erection or equipment of any buildings or parts of buildings intended for the exclusive use of the medical school any sum or sums of money other than such sums as may be specifically appropriated to that purpose by any subscribers to the King's College Hospital removal fund or as may be specifi-

cally appropriated to that purpose by the King's College Hospital removal fund committee out of any funds entrusted to them by any such subscribers with regard to which an express power in their discretion so to appropriate the same or some part thereof has been conferred on the said committee by such subscribers. A.D. 1908.

28.—(1) The corporation of the hospital shall out of the moneys to arise from the sale or any other disposition of the lands described in the schedule to the King's College Hospital Act 1904 (in this Act referred to as "the present site") and the buildings thereon set apart and invest in any manner from time to time authorised by law for the investment of trust funds—

As to provision of funds for medical school. Finances of medical school to be distinct from those of hospital.

- (A) A sum of twenty thousand pounds;
- (B) A sum of money equal to one-fifth of the sum (if any) by which the realised value of the present site and the buildings thereon (when the same shall all have been disposed of under the powers of the King's College Hospital Act 1904) shall exceed the sum of one hundred thousand pounds.

For the purposes of this section the realised value of the present site and buildings shall be deemed to be the sum which would result from adding together—

- (i) Any sum or sums in gross paid as the consideration or part of the consideration upon a sale or sales of the present site or any part thereof;
- (ii) The capitalised value of any annual sums terminable or otherwise payable as the consideration or part of the consideration upon any such sale or sales as aforesaid;
- (iii) The amount of any fines or premiums accepted or taken for the granting of any lease or leases of the present site or any part thereof;
- (iv) The capitalised value of any rents reserved on any such lease or leases as aforesaid;
- (v) The value of the reversion remaining (when the present site and the buildings thereon shall all have been disposed of) in the corporation of the hospital upon the term granted by any such lease as aforesaid.

For the purposes of this section the capitalised value of any such annual sums or rents and the value of any such reversion as aforesaid shall be determined by a surveyor to be

A.D. 1908. — appointed by the President of the Surveyors' Institution on the request of either the chairman of the committee of management or the dean of the medical school.

(2) For the purposes of this section the present site and the buildings thereon shall be deemed to have been all disposed of as soon as either a sale shall have been effected or a lease (whether a building or any other lease) granted of every part of the present site.

(3) The income of the investments from time to time representing the said two sums so to be set apart and invested as aforesaid shall be applied by the corporation of the hospital or the committee of management for the purposes of the medical school.

(4) Subject to the provisions of this Act no part (other than the said two sums so to be set apart and invested as in this section is provided) of the general funds or property of the hospital or of the income thereof shall be applied for the purposes of the medical school and the medical school shall in all respects relating to finance be kept distinct from the hospital.

Regulations
for govern-
ment of me-
dical school.

29.—(1) As from the appointed day the regulations in the Fourth Schedule to this Act contained shall have effect with respect to the government control and discipline of the medical school and the students attending the same until the same regulations shall be revoked altered or added to as hereinafter provided.

Medical
school to be
under control
of committee
of manage-
ment.

(2) Subject as in this Act is provided the medical school and the government affairs and business thereof shall be under the control of the committee of management and it shall be lawful for the committee of management in their absolute discretion to make any regulations revoking altering or adding to any of the said regulations contained in the Fourth Schedule to this Act and to make all such further or other regulations as they in their absolute discretion may think necessary or expedient for the proper government control and discipline of the medical school and the students thereof with power at the like discretion by regulations made by them to revoke alter or add to any such regulations made by them and it shall be lawful for the committee of management to enter into all such contracts and agreements and to do all such acts and things as they in their absolute discretion may think necessary or expedient

in connection with the carrying on of the medical school and the conduct of the affairs and business thereof. A.D. 1908.

30. As from the appointed day all duties and obligations of the corporation of the college towards such advanced medical students attending the medical school as shall on the appointed day be on the books of the college shall be transferred to and performed by the corporation of the hospital and all fees which on the appointed day shall have been paid in advance to the corporation of the college by any such medical students as aforesaid shall failing agreement be apportioned between the council and the committee of management in such proportions as shall be determined by order of the commissioners.

Transfer of certain obligations from college to hospital. Apportionment of certain fees of advanced medical students.

31.—(1) As from the appointed day the persons described in Part I. of the Fifth Schedule to this Act shall be constituted a body corporate by the name of “King’s College School Wimbledon” for the purpose of carrying on King’s College School and shall by the name aforesaid have perpetual succession and shall have a common seal with power to sue and be sued and to hold without licence in mortmain land of an annual value not exceeding ten thousand pounds in addition to the annual value of such lands buildings hereditaments and possessions as may be from time to time exclusively used and occupied for the immediate purposes of King’s College School.

Constitution of boys’ school.

(2) As from the appointed day King’s College School and all rights and powers duties functions real and personal property (including trust funds) and liabilities of or vested in or held by the corporation of the college or the council on their behalf and all real and personal property (including trust funds) vested in or held by any other person or corporation (whether in trust for the corporation of the college or otherwise) immediately before that day in respect or for the purposes of King’s College School shall by virtue of this Act be transferred to vested in and performed and discharged by the corporation of King’s College School but as to such real and personal property subject to all mortgages charges or other incumbrances to which the same shall be subject immediately before the appointed day.

(3) The constitution and management of King’s College School shall be regulated in accordance with statutes made for the purpose by the commissioners and in framing those statutes the commissioners shall give effect to the provisions specified or indicated in Part II. of the Fifth Schedule to this Act but so

A.D. 1908. — that no such statute shall prejudice affect or derogate from any of the powers or rights by or by virtue of the last preceding subsection transferred to and vested in the corporation of King's College School So far as they concern the constitution and management of King's College School this Act and the statutes of the commissioners may at any time be altered by a scheme made under the Endowed Schools Acts 1869 to 1873 and 1874 or the Charitable Trusts Acts 1853 to 1894.

Appoint-
ment of com-
missioners.

32.—(1) There shall be a body of five commissioners styled "the King's College London Transfer Commissioners" and consisting in the first instance of the following persons (namely):—

One person to be appointed by His Majesty in Council;

Sir Edward Henry Busk Charles Alfred Russell Sir Thomas Raleigh and William English Harrison.

(2) If and whenever any vacancy occurs among the commissioners it shall be lawful for His Majesty in Council to appoint a person to fill the vacancy.

(3) The commissioners may appoint or employ such persons as they may think necessary for the execution of their duties under this Act and may assign to them such duties and remuneration as they think proper.

(4) Any expenses incurred by the commissioners shall be paid by the university.

Duration and
proceedings
of commis-
sioners.

33.—(1) The powers of the commissioners shall continue until the end of the year one thousand nine hundred and ten and no longer but it shall be lawful for His Majesty from time to time upon the advice of His Privy Council to continue the powers of the commissioners for such time as His Majesty thinks fit but not beyond the end of the year one thousand nine hundred and eleven.

(2) The commissioner appointed by His Majesty in Council and in the event of his ceasing to be a commissioner the person appointed by His Majesty in Council to fill the vacancy so caused shall be the chairman of the commissioners and in case of his absence from any meeting the commissioners present at such meeting shall choose a chairman.

(3) The powers of the commissioners may be exercised at any meeting at which three or more commissioners are present.

(4) In case of an equality of votes on a question at a meeting the chairman of the meeting shall have a second or casting vote in respect of that question. A.D. 1908.

(5) The commissioners shall have a common seal which shall be judicially noticed.

(6) Any act of the commissioners shall not be invalid by reason only of any vacancy in their body but if at any time and as long as the number of commissioners is less than four the commissioners shall discontinue the exercise of their powers.

(7) The commissioners may if they think fit take evidence on any matters dealt with by them under this Act and shall hear any representations made to them by or on behalf of the university or the convocation thereof or any body or person affected.

34.—(1) The commissioners shall make statutes and regulations for the matters for which statutes and regulations are to be made by them under this Act and may (subject to the provisions of this Act) make orders— Powers
of commis-
sioners.

(A) Determining any question as to what property (including trust funds) and liabilities are by this Act transferred to the university the corporation of the hospital and the corporation of King's College School respectively and if necessary apportioning any property trust fund or liability ;

(B) Making any alterations in the terms of any trust which may be rendered necessary or proper in consequence of the transfer or apportionment of the funds or any part thereof under this Act or (in the case of trusts the funds subject where to will remain vested in the corporation of the college after the appointed day) may be otherwise rendered necessary or proper in consequence of the passing of this Act ; and

(C) Determining any question matter or thing which under this Act is to be determined by the commissioners ;

and generally may make all such arrangements do all such things and make all such orders as may be necessary or proper for or incidental to facilitating the continuance of the work of the respective departments or branches of the college transferred by this Act to the university and remaining vested in the corporation of the college and the work of the women's department of King's College

A.D. 1908. — the hospital the medical school and King's College School and otherwise carrying this Act into effect and any order of the commissioners so made shall have effect as if enacted in this Act.

(2) Statutes orders and regulations made under this Act shall have effect notwithstanding anything in any Act of Parliament charter deed or other instrument.

Approval of
statutes.

35.—(1) When any statute or regulation has been made by the commissioners a notice of its having been made and of the place where copies of it can be obtained shall be published in the London Gazette and the statute or regulation shall be laid as soon as may be before both Houses of Parliament and shall not be valid until it has been approved by His Majesty in Council.

(2) If either House of Parliament within forty days exclusive of any period of prorogation after a statute or regulation has been laid before it presents an address praying His Majesty to withhold his assent from the statute or regulation or any part thereof no further proceedings shall be taken on the statute or regulation or on the part thereof to which the address relates but this provision shall be without prejudice to the making of a new statute or regulation.

(3) The university or the convocation thereof or any body or person directly affected by any such statute or regulation may within three months after the notification thereof in the London Gazette petition His Majesty in Council to withhold his approval of the whole or any part thereof.

(4) His Majesty in Council may refer any such petition to a Committee of the Privy Council with a direction that the Committee hear the petitioner personally or by counsel and report specially to His Majesty in Council on the matter of the petition.

(5) Thereupon it shall be lawful for His Majesty by Order in Council either to declare his approval of the statute or regulation in whole or in part or to signify his disapproval thereof in whole or in part but any such disapproval shall be without prejudice to the making of a new statute or regulation.

(6) The costs of any petition under this section may be regulated by the committee to which the petition is referred.

Trust funds.

36. Subject to the provisions of this Act all trust funds by this Act transferred to the university or the corporation of the hospital or the corporation of King's College School or remaining

vested in the corporation of the college shall subject to any alterations in the terms thereof which may be made by the commissioners under this Act be held upon the same trusts as those on which they were held by the corporation of the college before the transfer. A.D. 1908.

37.—(1) The professors assistant professors teachers and officers who immediately before the appointed day hold office under the corporation of the college shall as from that day hold their offices as nearly as may be upon the like terms and conditions and with the like privileges under the university the corporation of the college the corporation of the hospital and the corporation of King's College School (as the case may require) as they would have held the same under the corporation of the college if this Act had not been passed. Saving for existing professors &c.

(2) If any question arises as to whether any such professor assistant professor teacher or officer is transferred to the university the corporation of the hospital or the corporation of King's College School or continues to hold his office or place under the corporation of the college or as to the terms and conditions on which any such person holds his office or place the question shall be determined by the commissioners.

(3) Every person who immediately before the appointed day is a fellow of King's College London shall be entitled to retain the title for life.

38. There shall be excepted from the liabilities of the corporation of the college and the council respectively by this Act transferred to the university all debts or other pecuniary obligations or liabilities of whatsoever nature or kind of or incurred by the corporation of the college or the council and remaining unpaid undischarged or unsatisfied immediately before the appointed day and the corporation of the college shall (to the exclusion of the university) remain and be subject to and pay discharge or satisfy all such debts obligations and liabilities as last aforesaid. Certain liabilities of college not transferred to university.

39.—(1) If on the appointed day any proceeding or any cause of action is pending or existing by or against the corporation of the college the same shall not abate be discontinued or be in any way prejudicially affected by reason of anything in this Act but the proceeding or cause of action may be continued prosecuted and enforced by or against the university the Pending proceedings &c.

A.D. 1908. — corporation of the hospital or the corporation of King's College School (as the case may require) as it might have been by or against the corporation of the college if this Act had not been passed but not further or otherwise.

(2) All contracts deeds bonds agreements and other instruments subsisting immediately before the appointed day and affecting the corporation of the college shall be of as full force and effect against or in favour of the university the corporation of the hospital or the corporation of King's College School (as the case may require) and may be enforced as fully and effectually as if instead of the corporation of the college the university the corporation of the hospital or the corporation of King's College School (as the case may require) had been a party thereto.

(3) Provided that nothing in this section shall affect any proceeding cause of action contract deed bond agreement or other instrument relating solely to any debt or other pecuniary obligation or liability of whatsoever nature or kind of or incurred by the corporation of the college or the council referred to in the section of this Act the marginal note whereof is "Certain liabilities of college not transferred to university" or relating solely to the department or branch of the college maintained or carried on immediately before the appointed day by the corporation of the college or the council on their behalf in relation to or for the purposes of the provision or management of or otherwise in relation to instruction of a university standard in subjects comprised within the faculty of theology in the university and which under the provisions of this Act is to remain vested in the corporation of the college or relating solely to the instruction in theology or religion given immediately before the appointed day by the corporation of the college or the council on their behalf in the women's department of King's College or solely to the Strand school or to the Civil Service department.

Saving for
wills &c.

40. Any will or other testamentary document whether made before or after the passing of this Act which contains any bequest gift or trust in favour of the corporation of the college the college the hospital the medical school or King's College School shall not fail by reason of anything in this Act but shall be read and have effect as if it had been made in favour of (A) the university for the purposes of the University of London King's College or of the women's department of King's College or (B) the corporation of the college for the purposes of the theological department of

King's College London or (c) the corporation of the hospital or A.D. 1908.
 (D) the corporation of King's College School according to the —
 intent and purpose thereof.

41. Any reference to the principal of King's College London contained in any Act of Parliament charter deed or other instrument shall be construed and have effect as a reference to the principal officer of the college for the time being by whatever title he shall be known from time to time. References to principal of college how to be construed.

42. In calculating the annual value of land which under this Act may be held without licence in mortmain by any body corporate the value of any lands transferred by this Act or leased or underleased pursuant to the provisions thereof to such body shall not be included and the annual value shall be computed at the rack-rent which might have been got for the lands at the time of their acquisition. Annual value for purposes of Mortmain Acts.

43. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be paid by the University. Costs of Act.

A.D. 1908.

SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

MATTERS TO BE PROVIDED FOR BY STATUTES REGULATING THE COLLEGE.

Names of the respective Departments of the College.

1. The official name of the departments or branches of the college by this Act transferred to the university and of the portion of the buildings in the Strand leased to the university shall be "University of London King's College" The official name of the department or branch of the college which under the provisions of this Act remains vested in the corporation of the college and of the portion of the said buildings retained by the corporation of the college shall be "the theological department of King's College London."

The Purposes of the College.

2. The university shall as far as its means and other duties permit maintain and develop the departments or branches of the college transferred to it as an institution in which wide academic culture may be secured by the variety of the subjects taught in different faculties including preliminary and intermediate medical studies Provided always that no teaching shall be given by the university in any subjects which pertain exclusively to the curricula in the faculty of theology.

3. The council shall as far as their means permit maintain and develop the department or branch of the college retained by them as an institution for the purpose of giving instruction of a university standard in theology.

4. The council shall give instruction of a university standard in subjects comprised in the faculty of theology The council shall not give instruction in subjects which pertain exclusively to any faculty other than the faculty of theology Provided that the council may give such instruction in subjects comprised in the faculty of arts as may be required in the case of students pursuing or intending to pursue a course of theological study.

5. The theological department of King's College shall be a school of the university in the faculty of theology and all the provisions of the statutes made for the university under the University of London Act 1898 and for the time being in force which relate to schools of the university shall extend and apply to the theological department of King's College London as such school of the university and the council shall be the governing body of the school.

[8 EDW. 7.] *King's College London (Transfer)* [Ch. xxxix.]
Act, 1908.

Representation on the Senate.

A.D. 1908.

6. One person to represent University of London King's College shall be co-opted by the senate after considering any report from the college delegacy in relation thereto and such person shall be substituted for one of the two members of the senate who under the University of London Act 1898 and the statutes made thereunder are to be appointed by the corporation of the college.

7. In lieu of the right to appoint two members of the senate of the university under the University of London Act 1898 and the statutes made thereunder the corporation of the college shall have the right to appoint one member of the senate to represent the theological department of King's College.

8. Subject to any statute made by the senate and to departures from this rule caused by casual vacancies the representatives of University of London King's College and of the theological department of King's College on the senate shall retire alternately at the periods fixed for the retirement of members of the senate.

The Delegacy of King's College.

9. There shall be constituted a committee of the senate hereinafter called "the delegacy of King's College" to advise the senate and to superintend with such powers as the senate may delegate to them the work carried on upon the premises of University of London King's College.

10. The Vice-Chancellor for the time being shall be a member of the delegacy and the remaining members of the delegacy shall be periodically elected by the senate so however that one quarter of the members of the delegacy shall be members of the professorial board hereinafter mentioned and that of the remaining three-fourths of the members not more than one third shall be teachers of the university.

11. The principal of the university if not a member of the delegacy shall have the right to attend its meetings and to speak thereat but not to vote.

12. The senate shall allocate to the delegacy such funds as the senate think proper for the expenses to be incurred by the delegacy in the ensuing year. Before any such allocation is made the delegacy shall submit to the senate a report and estimates of their expenses for the ensuing year and the senate shall take into consideration the report and estimates so submitted.

13. Any proposal to make any statute or regulation altering or revoking any statute or regulation relating to the management of the college shall be submitted to the delegacy and the senate shall before making any statute or regulation for carrying the proposal into effect take into consideration any report by the delegacy on the proposal.

A.D. 1908.

14. There shall be constituted a professorial board for the purpose of advising and making suggestions to the delegacy on all academical matters and the general management of University of London King's College. The following persons whilst teachers in University of London King's College shall be members of the professorial board (1) The professors and assistant professors holding office under the council immediately before the appointed day other than those who by order of the commissioners or otherwise are assigned to the faculty of theology (2) Persons subsequently appointed as professors and readers or lecturers in the University of London King's College whom the senate having regard to the importance of their work in University of London King's College shall nominate to be members of the professorial board.

15. The professorial board shall be represented on any board of advisors or other body appointed by the senate with a view to the election of professors readers or lecturers to teach subjects other than those pertaining to the faculty of theology exclusively in the portion of the college buildings leased or sub-leased to the university or to give therein such teaching as may in the opinion of the senate qualify them for being members of the board or with respect to the appointment of any person to be a member of the board.

16. The senate shall be empowered to confer upon the delegacy by statute or regulation such of the powers usually exercised by the governing body of a school of the university as they may think fit.

The Theological Committee of King's College.

17. The council shall appoint a committee called hereinafter "the theological committee" to advise the council and to superintend with such powers as the council may subject to the conditions herein contained delegate to them the work carried on in the theological department of King's College London.

18. The principal of the university shall not be a member of the committee but may by invitation of the committee attend its meetings and speak thereat.

19. There shall be a professorial board of the theological department of King's College London for the purpose of advising and making suggestions to the theological committee on all academical matters and the general management of the theological department of King's College London. The following persons whilst teachers in the theological department shall be members of the professorial board of the theological department :—

- (1) The professors and assistant professors holding office under the council immediately before the appointed day who by order of the commissioners or otherwise are assigned to the faculty of theology :

- (2) Persons subsequently appointed by the council or by the theological committee if so authorised by the council as professors or readers in the theological department whom the council having regard to the importance of their work in the theological department shall nominate to be members of the professorial board of the theological department. A.D. 1908.

The Principal of the College.

20. The principal officer of the college shall be called "the principal" and shall be nominated and if necessary removed by the Crown.

21. The principal shall—

- (1) Subject to the control of the senate supervise all matters relating to the instruction of a university standard given within the college in faculties other than that of theology:
- (2) Subject to the powers hereinafter entrusted to the dean of King's College be responsible to the senate and to the council for the discipline of the students attending classes under the control either of the university or of the council in their capacity as the governing body of a school of the university:
- (3) Conduct acting when necessary in concert with the dean all correspondence and other business relating to the college other than that which relates exclusively to the theological department:
- (4) Give such instruction in the faculties other than that of theology as may be directed by the senate.

22. The principal if not a member of the delegacy shall have the right to attend the meetings of the delegacy and to speak thereat but shall not as principal have the right to vote.

23. The principal if not a member of the theological committee shall have the right to attend the meetings of the committee and to speak thereat but shall not as principal have the right to vote.

24. The principal shall be chairman of the professorial board of King's College.

The Dean of King's College.

25. The council shall appoint a head of the theological department who shall be called "the dean of King's College" and shall have power to remove the dean from his office.

26. The dean shall—

- (1) Subject to the control of the council supervise all matters relating to the instruction given in the theological department and undertake such other duties connected with

A.D. 1908.

the religious teaching given therein or in the women's department as may be assigned to him by the council in accordance with the provisions herein contained:

- (2) Be responsible to the council for the discipline of students receiving instruction exclusively in the theological department. Provided always that if questions arise which affect the discipline of other students or of the college as a whole the dean shall act in concert with the principal whose decision in case of a difference of opinion between them shall be binding on him:
- (3) Conduct correspondence relating exclusively to the theological department and assist the principal in matters connected with the general management of the college in which the theological department is concerned.

27. The dean if not a member of the delegacy shall have the right to attend the meetings of the delegacy and to speak thereat but shall not as dean have the right to vote.

28. The dean if not a member of the theological committee shall have the right to attend the meetings of the committee and to speak thereat but shall not as dean have the right to vote.

29. The dean shall be chairman of the professorial board of the theological department.

First Principal and Dean of King's College.

30. The Rev. A. C. Headlam D.D. Principal of King's College London shall be the first principal and dean of the college and shall hold his office by the same tenure and upon the same terms and conditions as to retirement and otherwise (the necessary alterations being made) as those by and upon which he held the office of principal immediately before the appointed day.

The above regulations as to the appointment and removal of these officers shall be suspended until the determination of his office. His responsibilities and duties shall however be as above defined in so far as they are consistent with the two offices being held by one person and he shall be removable from his office of principal of the college by the Crown and from his office of dean of King's College by the council.

In the case of any future appointment the council may with the consent of the senate appoint anyone appointed by the Crown as principal of the college to be also dean of King's College.

Meetings of the Delegacy and the Theological Committee in Common Session.

31. Meetings of the delegacy and the theological committee may be held in common session for the discussion of business—

- (A) Which is referred to them by statute or regulation for discussion at such meetings ; A.D. 1908.
- (B) Which the senate and the council have directed to be considered at such meetings ;
- (C) Which the delegacy and the theological committee have agreed shall be considered at such meetings ;
- (D) Which the chairman of the delegacy or of the theological committee or in cases of urgency the principal or the dean may direct to be brought before any such meeting :

Provided always that either the senate or the council or in cases of urgency the vice-chancellor of the university or the chairman of the council may direct that either any particular class of business or any particular questions shall not be discussed in common session.

The appointment of the secretary of the college and of the office and library staffs shall be made by the delegacy and the theological committee meeting together and voting in common.

32. The agenda paper for a meeting in common session shall be the same both for the delegacy and for the committee.

33. The chairman of a meeting of the delegacy and the committee in common session shall be the chairman of the delegacy or the committee as far as possible in turn or in the absence of these shall be elected by the members of the delegacy and the committee then present voting jointly.

34. The votes of the delegacy and the committee on any matter brought before a meeting of the delegacy and committee in common session shall be taken and recorded separately except in the case of matters which are expressly referred to them under the provisions in that behalf hereinafter contained for determination in common session by a majority of those present and voting.

35. No decision arrived at shall (except in the case of matters which are expressly referred to them under the provisions in that behalf hereinafter contained for determination in common session by a majority of those present and voting) be binding on either the delegacy or the committee unless the meeting is attended by the number of members of the delegacy and committee respectively required to form a quorum at the meetings of such delegacy and committee when separately held or unless such decision is arrived at by the votes of a majority of the members of as well the delegacy as the committee respectively present and voting.

36. In the event of a quorum of one or both bodies not being formed the meeting may with the consent of the majority of those present proceed to the discussion of business but the results arrived at if any shall not be valid till they have been submitted either in

A.D. 1908. — separate or common session to the delegacy or committee of which a quorum was not present.

37. The consideration of any matter other than a matter which—

(A) Is referred to them by statute or regulation for discussion at such meetings; or

(B) The senate and the council have directed to be considered at such meetings;

may be adjourned or withdrawn from the meeting in common session by a vote of either the delegacy or the committee.

38. The above regulations notwithstanding the senate and the council may agree and in that event direct that the decision of any matter which they have directed shall be considered by the delegacy and the committee in common session shall be determined by the majority of those present and voting and may appoint a quorum for such joint meeting.

Meetings of the Professorial Boards in Common Session.

39. Meetings of the professorial boards may be held in common session under and in accordance with statutes to be made by the commissioners identical as nearly as may be with those for the meetings of the delegacy and the theological committee in common session but with the substitution therein of the delegacy for the senate the theological committee for the council the professorial board of University of London King's College for the delegacy and the professorial board of the theological department for the theological committee and with all other necessary alterations and with the omission therefrom of all reference to the appointment of the secretary of the college or of the office or library staffs.

Time-Table.

40. The senate and the council shall direct the delegacy and the theological committee respectively to arrange the time-table of classes and other regulations for the instruction of the students in concert and subject to the conditions following (that is to say):—

(1) That no student shall be prevented by such arrangements from attending a daily service in the college chapel and a weekly lecture in theology if he so desire:

(2) That no student other than those studying exclusively in the theological department shall be compelled to attend such service or lecture or be subject to any disability on account of his religious belief:

(3) That every reasonable facility shall be given to students to attend courses of study approved by the senate for internal students and comprising classes held both in the theological and in other faculties.

Fellows of King's College.

A.D. 1908.

41. The senate (after receiving a report from the delegacy) may appoint persons as fellows of the college and the council (in respect of distinction in theology) may elect persons as fellows of the college but the appointment by the senate of any person as a fellow of the college shall not of itself entitle him to be a member of the corporation of the college.

For the purpose of electing fellows in respect of distinction in theology the council shall retain all their powers of electing fellows existing immediately before the appointed day but save as aforesaid all such powers shall as from the appointed day be extinguished.

Associates of the College.

42. The council may elect as associates of the college—

- (1) Students of the theological department who have attended such courses of instruction and passed such examinations as may from time to time be prescribed by the council; and
- (2) Students of other departments who have obtained a degree of the university and have also attended such courses of instruction in theology and passed such examinations in theology as may from time to time be prescribed by the council;

and shall for that purpose retain all their powers of electing associates as such powers exist immediately before the appointed day but save for the purpose aforesaid all such powers shall as from the appointed day be extinguished.

SECOND SCHEDULE.

THE WOMEN'S DEPARTMENT OF KING'S COLLEGE.

1. The university shall as far as its means and other duties permit maintain and develop the women's department of King's College as an institution for the higher education of women to be carried on in the first instance on the site and in the buildings on and in which the same is carried on immediately before the appointed day and thereafter unless the senate by statute passed in accordance with the provisions of the University of London Act 1898 otherwise determine in such place or places within the parish of Kensington as the senate may from time to time appoint.

2. The formal name of the said institution shall be "University of London King's College for Women."

A.D. 1908.

3. The delegacy of King's College shall advise the senate and superintend with such powers as the senate may delegate to them the work carried on upon the premises of University of London King's College for Women. Provided always that the senate may if they think it desirable appoint a special committee to act in place of the delegacy of King's College as the delegacy of University of London King's College for Women.

4. There shall be constituted a board of the principal teachers of University of London King's College for Women with such title as the senate may determine and with powers and duties identical as nearly as may be (the necessary alterations being made) with those of the professorial board of King's College as set forth in the First Schedule to this Act.

5. In the event of the management of University of London King's College for Women being entrusted to the delegacy of King's College the board of principal teachers of University of London King's College for Women shall be represented on the delegacy.

6. In the event of the establishment of a special committee to act as the delegacy for University of London King's College for Women the regulations relating to such special committee shall be identical as nearly as may be the necessary alterations being made with those relating to the delegacy of King's College as set forth in the First Schedule to this Act.

7. The senate and the council shall direct the delegacy of King's College or such special committee as aforesaid and the theological committee respectively to arrange the time-table of classes and other regulations for the instruction of the students in concert and subject to the conditions following (that is to say):—

- (1) That no student shall be prevented by such arrangements from attending a daily service and a weekly lecture in theology held in the room in the buildings for the time being of the women's department to be leased to the corporation of the college as provided in this Act if she so desire:
 - (2) That no student shall be subject to any disability on account of her religious belief:
 - (3) That every reasonable facility shall be given to students to attend courses of study approved by the senate for internal students and comprising classes held both in the theological and in other faculties.
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THIRD SCHEDULE.

A.D. 1908.

Short Title of Act.	Regnal Year and Chapter.	Number and Marginal Note of Section.	Extent of Repeal or Nature of Amendment.
The King's College Hospital Act 1851.	14 & 15 Vict. c. cxxxviii.	Sec. 5 Trustees to whom copyholds are surrendered to stand seised thereof in trust for the corporation.	The words "with the consent of the council" are repealed.
		Sec. 8 Trustees of stock and other personal property to transfer the same to the corporation.	The words "with the consent of the council" are repealed.
		Sec. 15 Appointment of president and vice-presidents.	The words "Provided always that the principal for the time being of King's College London shall by virtue of his office always be a vice-president of the said hospital" are inserted after the word "corporation."
		Sec. 19 Who shall be auditors.	The word "two" is substituted for the word "three" The word "who" is substituted for the words "two of whom" All the words in the section subsequent to the words "hereinafter provided" are repealed.
		Sec. 20 Appointment of first auditors.	The words "(other than the auditor to be appointed by the council as aforesaid)" are repealed.
		Sec. 22 Three quarterly courts to be held.	The whole section is repealed.
		Sec. 23 Special courts may be convened.	The words "or by the resolution of a meeting of the council" the words "by any six or more members of the council or" and all the words in the section subsequent to the words "members of the corporation" are hereby respectively repealed.
		Sec. 24 Members of committee may be removed by courts.	The words "(not being the auditor for the time being appointed by the council as aforesaid)" and the words "a member of the council or" are repealed.

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[8. Edw. 7.]

A.D. 1908.	Short Title of Act.	Regnal Year and Chapter.	Number and Marginal Note of Section.	Extent of Repeal or Nature of Amendment.
	The King's College Hospital Act 1851.— <i>cont.</i>	14 & 15 Vict. c. cxxxviii.	Sec. 25 Powers of the committee.	The words "to the council and" and all the words in the section subsequent to the words "authorities of the corporation" are repealed.
			Sec. 26 Mode of investment.	The words "may if in their absolute discretion they shall think fit" are substituted for the word "shall" immediately after the words "that the committee" The words "when so directed by the committee" are inserted immediately after the words "and required" and all the words in the section subsequent to the words "from time to time direct" are repealed.
			Sec. 28 The council to hold the seal of the corporation.	The word "committee" is substituted for the word "council" wherever that word occurs in the section.
			Sec. 29 Powers of the council.	The whole section is repealed.
			Sec. 30 The votes of the majority to decide.	The words "of the council or" are repealed.
			Sec. 32 Proceedings of council and committee to be entered in proper books.	All the words in the section down to and including the words "of the council and" the words "as the case may require" are substituted for the words "in like manner" and the words "of the council or" are repealed.
			Sec. 33 Votes &c. to be valid notwithstanding any irregularity in appointment.	The words "of the council or" are repealed.
			Sec. 34 Members of council or committee not to be personally liable.	The words "council or" the words "or of the council" and the words "of the council and" are repealed.
			Sec. 35 Present bye-laws to continue except as and until altered.	The words "and except so far as the same shall or may be disallowed by the council as hereinafter provided" are repealed.

Short Title of Act.	Regnal Year and Chapter.	Number and Marginal Note of Section.	Extent of Repeal or Nature of Amendment.
The King's College Hospital Act 1851 —cont.	14 & 15 Vict. c. cxxxviii.	Sec. 36 Power to courts to make certain byelaws.	The words "the council or" the words "of the council or" the words "council or" and the words "such six or more members of the council or" are repealed.
		Sec. 38 Certified copies of all bye-laws to be laid before the council who may disallow the same.	The whole section is repealed.
		Sec. 40 The council to appoint the medical officers and chaplain.	The word "committee" is substituted for the word "council."
		Sec. 41 Dressers and clinical clerks appointed by the council.	The word "committee" is substituted for the word "council" wherever that word occurs in the section and the word "hospital" is substituted for the word "college."
		Sec. 42 The medical students of King's College to have access to the hospital.	The whole section is repealed.
		Sec. 43 Council to make regulations for medical officers and students.	The word "committee" is substituted for the word "council" wherever that word occurs in the section and all the words in the section subsequent to the word "expedient" are repealed.
		Sec. 46 Power to build hospital with approaches.	The words "with the consent of the council" are repealed.
The King's College Hospital Act 1904.	4 Edw. 7. c. ccix.	Sec. 64 Power for the Bishop of London to consecrate the chapel and to the council to nominate and remove the chaplain.	The word "committee" is substituted for the word "council" wherever that word occurs in the section.
		Sec. 18 As to exercise of powers of Act.	All the words in the section subsequent to the word "committee" are repealed.
		Sec. 19 As to quorum at meetings of council for purposes of hospital.	The whole section is repealed.

A.D. 1908.

FOURTH SCHEDULE.

CONTAINING REGULATIONS FOR THE GOVERNMENT OF THE MEDICAL SCHOOL.

1. There shall be a medical school committee consisting of the chairman vice-chairman and treasurer of the hospital (who shall be members by virtue of their respective offices) and not more than six members of the committee of management (one of whom shall be any member nominated by the senate) and not more than six other members to be chosen by a medical board to be constituted as in these regulations or any other regulations made by the committee of management and for the time being in force provided Three members shall form a quorum.

2. The medical board shall consist of the physicians and surgeons the assistant physicians and surgeons the dental surgeon the senior anaesthetist of the hospital the teacher of hygiene of the medical school and such other teachers of the medical school as the committee of management shall on the recommendation of the medical board appoint to be members thereof.

3. Subject to any directions or instructions given by any court of the corporation of the hospital or by the committee of management the medical board shall have and exercise the following powers (namely):—

- (1) To determine the course of study in the medical school and to prescribe the duties of the teachers:
- (2) To report to the committee of management with regard to all vacant appointments on the teaching staff of the school:
- (3) To elect annually a dean of the medical school and also to elect from time to time two members of the active medical staff of the hospital to be members of the committee of management One of such two members shall retire annually and the member to retire shall be in the first year after the appointed day determined failing agreement by lot and in every subsequent year the member who has been longest in office since his last election A retiring member shall be re-eligible:
- (4) To cause a systematic record to be kept of all cases admitted to the hospital:
- (5) To report to the committee of management with regard to all vacant appointments on the medical staff of the hospital:

(6) Generally to aid the committee of management in the management of the medical and surgical departments of the hospital: A.D. 1908.

(7) To keep proper minutes of the proceedings of the board and to produce the same to the committee of management.

4. Subject to any directions and instructions given by any court of the corporation of the hospital or by the committee of management the medical school committee shall have and exercise the following powers (namely):—

(1) To administer the funds of the medical school whether derived from fees or from the income of trust funds applicable to the purposes of the medical school or from any other source whatsoever and to fix the fees payable by students and to determine the method of enforcing payments:

(2) To aid the committee of management in the management of the medical school:

(3) To keep proper accounts of the funds and of the income and expenditure of the medical school to be presented to the committee of management:

(4) To keep proper minutes of all proceedings of the medical school committee and to produce them to the committee of management:

(5) The medical school committee shall have power to appoint sub-committees with such powers as they may think fit to delegate to such sub-committees.

5. It shall be the duty of the committee of management to maintain order among all persons within the hospital and the medical school including students and in this duty they shall be assisted by the dean.

6. There shall be a committee to be called "the general board of teachers" and to consist of the members of the medical board and of all the persons officially engaged in teaching in the hospital. Such committee shall meet twice in the year on dates to be fixed by the medical board and on other occasions when the medical board shall see fit to convoke a meeting. The secretary of the medical board shall be the secretary of the general board of teachers which shall have the following powers (viz.):—

(1) To make suggestions to the medical board and the medical school committee for improvement of the teaching in the hospital:

(2) To make recommendations to the medical board concerning any student appointments in the hospital:

A.D. 1908. (3) To present to the medical board or the medical school committee any circumstances by which any member of the teaching staff of the hospital shall consider himself to be aggrieved:

(4) Generally to assist the medical board and the medical school committee.

7. Subject to the statutes byelaws and regulations for the time being in force every committee and court in this schedule mentioned shall regulate its procedure as it thinks fit.

FIFTH SCHEDULE.

PART I.

PERSONS CONSTITUTING THE CORPORATION OF KING'S COLLEGE SCHOOL.

(i) All persons who being members of the council immediately before the appointed day and not being otherwise qualified may before or within six months after the appointed day signify in writing addressed to the secretary of the college or of the school their desire to be members of the corporation.

(ii) Such persons as may have contributed or may contribute at any time for the purposes of the school the sum of one hundred pounds or having been boys in the school or parents of boys in the school the sum of twenty-five pounds.

(iii) Such other persons as may be appointed governors of the school by a general meeting of the members of the corporation.

PART II.

PROVISIONS TO WHICH EFFECT IS TO BE GIVEN BY STATUTES REGULATING THE CONSTITUTION AND MANAGEMENT OF KING'S COLLEGE SCHOOL.

1. There shall be an annual general meeting of the members of the corporation of King's College School held on such day in each year as may be fixed by the governing body. Provided that the first of such meetings shall be held within two years from the appointed day. The governing body may at any time call a special general meeting of the members of the corporation.

2. There shall be a governing body for the management of the school consisting of nineteen appointed members one member by virtue of his office and four co-opted members. Of the nineteen appointed members twelve shall be appointed by the corporation of King's College

School at the annual general meeting two by the council one by the Surrey County Council one by the borough council of Wimbledon one by the University of Oxford one by the University of Cambridge and one by the University of London. The bishop of the diocese shall be by virtue of his office a member of the governing body. The four co-opted members shall be co-opted by the governing body. Provided that the following persons (namely):—

The Right Honourable and Right Reverend the Lord Bishop of London;

The Right Honourable Lord Alverstone;

Charles Awdry;

The Honourable Richard Clere Parsons;

The Honourable William Frederick Danvers Smith;

Thomas Buzzard;

Sir Charles Alfred Elliott;

Sir William Henry Preece;

Sir Thomas Raleigh;

Sir Owen Roberts;

Sir Albert Kaye Rollit; and

Thomas Bailey Saunders;

shall be deemed to be the first twelve members appointed by the members of the corporation.

3. The term of office of members of the governing body other than the bishop of the diocese shall be fixed so that members may retire by rotation.

4. A retiring member shall be re-eligible.

5. The order of retirement of the first members of the governing body shall be determined by agreement or in default of agreement by lot.

6. In the case of a casual vacancy arising by reason of the death or resignation of a member or otherwise the vacancy shall be filled by a new appointment made by the body by whom the vacating member was appointed or in the case of a co-opted member by co-optation but the member so appointed or co-opted shall hold office only until the time when the person in whose place he is appointed or co-opted would have regularly gone out of office and shall then go out of office.

7. No religious test shall be adopted or imposed and no applicant for a school appointment shall be at any disadvantage on the ground of religious opinions. Provided that this provision shall not prevent the corporation of King's College School or the governing body from

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A.D. 1908. appointing any person as chaplain to the school or to give religious instruction to any boys in the school whose parents or guardians may desire them to receive the same.

8. As respects religious instruction and attendance at religious worship such and the like provisions shall be made as would have been made if the statutes of the commissioners so far as they concern the management of King's College School had been a scheme made subject to the provisions of section 15 of the Endowed Schools Act 1869.

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